

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Delene Bromirski	Team: Team # 8	CCRB Case #: 200501748	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 02/12/2005 4:43 PM	Location of Incident: 2112 Regent Place	18 Mo. SOL 8/12/2006	Precinct: 70
Date/Time CV Reported Sat, 02/12/2005 4:48 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/16/2005 3:08 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Megan Omalley	06355	930859	070 PCT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Porter	04454	931900	070 PCT
2. SGT Thierry Presume	92167	921687	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	A . Alleged Victim Uncooperative
B . POF Megan Omalley	Force: PO Megan Omalley used pepper spray against § 87(2)(b)	B . Alleged Victim Uncooperative
C . POF Megan Omalley	Force: PO Megan Omalley used pepper spray against § 87(2)(b)	C . Alleged Victim Unavailable

Synopsis

This complaint was referred to CCRB on February 16, 2005. On February 12, 2004 at approximately 4:43 p.m., § 87(2)(b) and her cousin, § 87(2)(b) were double-parked in front of a shop on Flatlands Boulevard. § 87(2)(b) and § 87(2)(b) entered the store anyway. When they returned, a summons issued § 87(2)(b) was on their vehicle. Since they already had a summons, they decided to drop off their bags and continue shopping. When they came out of the second store, § 87(2)(b) saw two police officers near her vehicle and one was writing out another summons. § 87(2)(b) described PO1 as a white male, approximately 28 years old, 5'7" tall, with red hair. PO2 was described as a white female officer, approximately 27 years old, and 5'6" tall, with blondish red hair. § 87(2)(b) began to argue with one of the officers who called her a "wise ass." § 87(2)(b) left the incident location and was pulled over a couple blocks down the road for reckless driving by the same officers. PO2 alleged that § 87(2)(b) had almost run over her partner, PO1. PO2 asked § 87(2)(b) to exit her vehicle, she refused, and then PO2 pepper sprayed her and § 87(2)(b). § 87(2)(b) was not injured as a result of the pepper spray; she turned away as it was discharged. § 87(2)(b) was subsequently arrested and taken to the 70th Precinct.

The initial IAB Log indicated that the command center received a call from the investigating officer, Sgt. Presume, who reported that PO O'Malley and PO Porter issued a summons to a parked vehicle. Then they drove around the block and when they returned they observed the same vehicle had moved but was still in parking violation. The officers proceeded to issue another summons when they were approached by a female operator who attempted to leave the location, causing the officers to be alarmed. At that time, the officers pepper sprayed the female driver and placed her under arrest. Sgt. Presume reported no injuries to the woman and that EMS was at the stationhouse to treat her for the pepper spray. The OLBS indicated that when § 87(2)(b) was asked to step out of her vehicle she refused. When PO O'Malley attempted to remove her from the vehicle, § 87(2)(b) began to punch, kick, and scratch PO O'Malley and PO Porter. PO O'Malley sustained bruising to her left arm and both officers received numerous scratches.

On February 22, 2005, the undersigned investigator spoke with § 87(2)(b). She indicated that she was interested in pursuing the complaint. However, she abruptly hung the telephone up, stating she was on an important telephone call and would call back. Since that date, four messages were left for § 87(2)(b) and two letters sent to her home address. Additionally, a search of the Coles Directory located two additional telephone numbers for § 87(2)(b). One was disconnected and the other was not a valid number for § 87(2)(b). § 87(2)(g) it is recommended that the allegations stated by § 87(2)(b) be closed as victim uncooperative.

In § 87(2)(b) initial telephone conversation, she provided a telephone number for her cousin, § 87(2)(b). However, she did not provide an address. A total of five telephone calls were placed to the telephone number provided; on each occasion the number was "temporarily not in service." In an effort to locate an address for § 87(2)(b) a search of the Coles Numerical Directory, Verizon Superpages, Metro Search, and DMV were conducted all with negative results. § 87(2)(g) it is recommended that the remaining allegation be closed as victim unavailable.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: